

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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DERRICK WATSON

SUMMONS

Plaintiff,

-against-

Index No: _____

THE CITY OF NEW YORK; WARDEN JOHN/JANE DOE # 1;
SUPERVISOR C.O. JOHN/JANE DOE # 1-2; CAPTAIN
JOHN/JANE DOE # 1; C.O. JOHN/JANE DOES # 1-10 the
individual defendant(s) sued individually and in
their official capacities,

Date Filed: _____

Basis of Venue:
occurrence of incident,
Rikers Island, New York

Defendants.

Jury Trial Demanded

----- X

YOU ARE HEREBY SUMMONED to appear and to answer the Complaint in this action and to serve a copy of your answer on plaintiff's attorney within twenty (20) days of the service of this Summons, exclusive of the day of service (or within thirty (30) days after service is complete if this Summons is not personally delivered to you within the State of New York), and in case of your failure to appear or to answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: NEW YORK, NY
JULY 17, 2017



MARTIN E. ADAMS, ESQ.
ADAMS & COMMISSIONG LLP
Attorneys for Plaintiff
65 Broadway 715
New York, New York 10006
212-430-6590

DEFENDANTS ADDRESS:

The City of New York
100 Church Street
New York, NY 10007

WARDEN JOHN/JANE DOE # 1
CAPTAIN JOHN/JANE DOE # 1;
SUPERVISOR C.O. JOHN/JANE DOE # 1-2
CAPTAIN JOHN/JANE DOE # 1
C.O. JOHN/JANE DOES # 1-10
George R. Viero Center (GRVC)
09-09 Hazen Street
East Elmhurst, NY 11370

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

DERRICK WATSON

COMPLAINT

Plaintiff,

-against-

Index No: _____

THE CITY OF NEW YORK; WARDEN JOHN/JANE
DOE # 1; SUPERVISOR C.O. JOHN/JANE DOE #
1-2; CAPTAIN JOHN/JANE DOE # 1; C.O.
JOHN/JANE DOES # 1-10 the individual
defendant(s) sued individually and in
their official capacities,

Date Filed: _____

Basis of Venue:
occurrence of
incident, Rikers
Island, New York

Defendants. **Jury Trial Demanded**

----- X

Plaintiff DERRICK WATSON, by and through his counsel,
Adams & Commissiong LLP alleges upon information and belief as
follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff
seeks relief for the violation of plaintiff's rights secured by
42 U.S.C. §§ 1983 and 1988 and the Fourth, Fifth, Sixth, Eighth,
and Fourteenth Amendments to the United States Constitution, and
the laws of the State of New York. Plaintiff's claims arise
from an incident that arose on or about July 18, 2016. During
the incident, the City of New York, and members of the New York
City Department of Correction ("DOC") subjected plaintiff to,
among other things, excessive force, failure to protect,
retaliation, deliberate indifference, denial of medical care,

conspiracy, assault, battery, negligence, intentional and negligent infliction of emotional distress, negligent hiring, supervision, training, retention, and instruction of employees, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Within 90 days of the conclusion of the incident alleged in this complaint, plaintiff served upon defendant City of New York a Notice of Claim setting forth the name and post office address of plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose and the items of damages or injuries claimed.

3. More than 30 days have elapsed since plaintiff's demands and/or claims were presented to defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.

4. This action is being commenced within one year and ninety days of the date of the occurrence herein. Venue is proper in the Supreme Court of the State of New York, Bronx County, because the acts in question occurred in the State

of New York, Bronx County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, Bronx County.

5. Plaintiff has made himself available for a 50-H hearing and will continue to do so.

6. Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

7. At all times referred to herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

PARTIES

8. Plaintiff Derrick Watson is an African American male who is a resident of the State of New York, Wyoming County. At the time of the incident, plaintiff was a pre-trial detainee at George R. Vierno Center "GRVC", located at Rikers Island, East Elmhurst, New York, assigned book and case number 980-15-00536.

9. At all times alleged herein, defendant City of New York was the employer of the individual defendants, and was responsible for the policies, practices and customs of the DOC, and maintained and operated GRVC, located at Rikers Island, East Elmhurst, New York.

10. At all times alleged herein, defendant Warden John/Jane Doe # 1 was a New York City Correction Officer employed at GRVC, or other as yet unknown DOC assignment, who violated plaintiff's rights as described herein.

11. At all times alleged herein, Supervisor C.O. John/Jane Doe # 1-2; Captain John/Jane Doe #1; and C.O. John/Jane Does # 1-10 were New York City Correction Officers employed at GRVC, or other as yet unknown DOC assignment, who violated plaintiff's rights as described herein.

12. The individual defendant correction officers are sued in their individual and official capacities.

STATEMENT OF FACTS

13. On or about July 18, 2016 at the GRVC housing area 6A, day room area correction officers and supervisors, including upon information and belief, defendants Warden John/Jane Doe # 1; Supervisor C.O. John/Jane Doe # 1-2; Captain John/Jane Doe #1; and C.O. John/Jane Does #1-10 at times acting in concert and at times acting independently, committed the following illegal acts against plaintiff.

14. On or about July 18, 2016, at approximately 5:30 P.M., plaintiff Derrick Watson was in housing area 6A.

15. Plaintiff was eating at a table, when an incident occurred.

16. Plaintiff was not involved in any manner in the incident.

17. Captain John/Jane Doe #1, and C.O. John/Jane Does # 1-10, responded to the incident and used a chemical agent.

18. Instead of using the chemical agent as provided in the directives, Captain John/Jane Doe #1 and C.O. John/Jane Does # 1-10 sprayed the chemical agent in a negligent wanton, reckless, manner, without regard to who was involved in the incident, and who the spray was affecting.

19. Plaintiff was exposed to this chemical agent.

20. Plaintiff was in pain, and requested medical treatment.

21. Upon information and belief, plaintiff requested medical treatment, but medical treatment was denied.

22. Those officers who did not spray chemical agents, failed to intervene to prevent this chemical attack.

23. The aforesaid events are not an isolated incident. Defendants City of New York, Warden John/Jane Doe # 1; and Supervisor C.O. John/Jane Doe # 1-2 have been aware (from lawsuits, notices of claim and complaints) that many of the DOC's officers are insufficiently trained on the proper way to use chemical agents and protect detainees, provide medical care, interact with detainees, and how not to act with deliberate indifference.

24. Defendants City of New York, Warden John/Jane Doe # 1, and Supervisor John/Jane Does # 1-2 are further aware that

such improper conduct and training has often resulted in a deprivation of civil rights.

25. Despite such notice, defendants City of New York, Warden John/Jane Doe # 1, Supervisor John/Jane Does # 1-2 have failed to take corrective action.

26. This failure caused the officers in the present case to violate plaintiff's civil rights.

27. Moreover, defendants City of New York, Warden John/Jane Doe # 1, Supervisor John/Jane Does # 1-2 were aware prior to the incident that Captain John/Jane Doe #1; and C.O. John/Jane Does # 1-10 lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as officers.

28. Despite such notice, defendants City of New York, Warden John/Jane Doe # 1, Supervisor John/Jane Does # 1-2 have retained these officers, and failed to adequately train and supervise them.

29. At all times defendant City of New York by the DOC, and its agents, servants and/or employees, negligently, carelessly, and recklessly trained the individual defendants for the position of correction officers.

30. At all times defendant City of New York by the DOC, and its agents, servants and/or employees, negligently, carelessly, and recklessly supervised, controlled, managed,

maintained, and inspected the activities of the individual defendants.

31. At all times defendant City of New York by the DOC, and its agents, servants and/or employees caused, permitted and allowed the individual defendants to act in an illegal, unprofessional, and/or deliberate manner in carrying out their official duties and/or responsibilities.

32. At all times defendant City of New York by the DOC, and its agents, servants and/or employees negligently, carelessly, and recklessly retained in its employ, the individual defendants, who were clearly unfit for their positions, who acted in an illegal, unprofessional, and/or deliberate manner in carrying out their official duties and/or responsibilities.

33. The occurrence(s) and injuries sustained by plaintiff, were caused solely by, and as a result of the negligent, malicious, reckless, and/or intentional conduct of defendant City of New York, and the DOC, and its agents, servants and/or employees, as set forth above, without provocation on the part of plaintiff contributing thereto, specifically, the reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected, and retained the individual defendants.

34. At no time did plaintiff unlawfully resist or assault any detainee or officer at any time during the above incident.

35. Plaintiff did not engage in prohibited, suspicious, unlawful, or criminal activity prior to or during the above incidents.

36. The individual defendants did not observe plaintiff engage in prohibited, suspicious, unlawful, or criminal conduct at any time prior to or during the above incidents.

37. At no time prior, during, or after the above incident were the individual defendants provided with information or in receipt of a credible or an objectively reasonable complaint from a third person, that plaintiff had engaged in prohibited, suspicious, unlawful or criminal conduct.

38. The individual defendants acted in concert committing the above-described illegal acts toward plaintiff.

39. The defendants acted under pretense and color of State law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of their rights.

40. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries,

pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

FIRST CLAIM

(EXCESSIVE FORCE)

41. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

42. The individual defendants' failure to protect and intervene was objectively unreasonable.

43. Accordingly, defendants are liable to plaintiff, pursuant to 42 U.S.C. § 1983; and the Fifth, Eighth, and Fourteenth Amendments to the United States Constitution.

SECOND CLAIM

(42 U.S.C. § 1983 CONSPIRACY)

44. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

45. Defendants are liable to plaintiff because they agreed to act in concert, with each other, to inflict unconstitutional injuries; and committed overt acts done in furtherance of that goal causing damage to plaintiff.

THIRD CLAIM

(ASSAULT)

46. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

47. Among other things as described above, excessive use of force against plaintiff placed him in fear of imminent harmful and offensive physical contacts

48. Accordingly, defendants are liable to plaintiff under New York State law for assault.

FOURTH CLAIM

(BATTERY)

49. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

50. Among other things as described above, defendants' failure to protect and excessive use of force against plaintiff were illegal physical contacts.

51. Accordingly, defendants are liable to plaintiff under New York State law for battery.

FIFTH CLAIM

**(NEGLIGENT SUPERVISION, HIRING, SUPERVISION, MONITORING,
TRAINING, AND RETENTION OF UNFIT EMPLOYEES)**

52. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

53. Defendant City of New York is liable to plaintiff because the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of defendant City of New York, and the DOC, its agents, servants and/or employees, as set forth above, without provocation on the part of plaintiff

contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected, and retained its correction officers.

SIXTH CLAIM

(DENIAL OF MEDICAL CARE)

54. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

55. Defendants are liable to plaintiff because they ignored plaintiff's need for medical treatment for a serious medical issue and/or injury, or delayed such treatment, and the harm occasioned by such an act is redressable under the Fourteenth Amendment to the United States Constitution, and 42 U.S.C. § 1983.

SEVENTH CLAIM

(INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS)

56. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

57. That by virtue of the occurrence and defendants, individually and/or by their agents, servants and/or employees, negligently and/or intentionally inflicted emotional harm upon plaintiff.

58. The defendants' actions against plaintiff were extreme and outrageous and caused plaintiff severe emotional distress.

59. The defendants breached a duty owed to plaintiff that either unreasonably endangered plaintiff's physical safety, or caused plaintiff to fear for his own safety.

EIGHTH CLAIM

(NEGLIGENCE)

60. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

61. Defendants are liable to plaintiff because defendants owed plaintiff a cognizable duty of care as a matter of law, and breached that duty.

NINTH CLAIM

(FAILURE TO INTERVENE)

62. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

63. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

64. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights.

TENTH CLAIM

(DELIBERATE INDIFFERENCE TO SAFETY)

65. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

66. The defendants exercised deliberate indifference and cruelty, extreme recklessness, and with the intent to create probable risk to plaintiff, failed to take remedial action, and allowing a dangerous environment to become so pervasive at its DOC detention centers by recklessly and wantonly using chemical agent, and failing to decontaminate detainees.

ELEVENTH CLAIM

(MONELL CLAIM)

67. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

68. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

69. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

70. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately

investigate prior complaints filed against the individual defendants.

71. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would commit the illegal acts described herein.

72. In addition, the following are municipal policies, practices and customs: (a) committing excessive force (b) acting with deliberate indifference to a risk of serious injury; (c) failing to protect individuals; and (d) covering up misconduct.

TWELTH CLAIM

(RESPONDEAT SUPERIOR)

73. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

74. The individual defendants were acting within the scope of their employment as New York City Correction Officers when they committed the above described acts against plaintiff, including failing to protect, assaulting, and battering plaintiff.

75. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

WHEREFORE, plaintiff demands a jury trial and judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that

would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against all defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988; and such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York
July 17, 2017

ADAMS & COMMISSIONG LLP.
Attorneys for Plaintiff
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New York, NY 10006-2503
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MARTIN E. ADAMS, ESQ

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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DERRICK WATSON,

VERIFICATION

Plaintiff,

Index No: _____

-against-

Date Filed: _____

THE CITY OF NEW YORK; WARDEN JOHN/JANE DOE #
1; SUPERVISOR C.O. JOHN/JANE DOE # 1-2;
CAPTAIN JOHN/JANE DOE # 1; C.O. JOHN/JANE
DOES # 1-10 the individual defendant(s) sued
individually and in their official
capacities,

Defendants.

----- X

STATE OF NEW YORK

ss.:

COUNTY OF NEW YORK

Martin E. Adams, Esq, an attorney-at-law, duly admitted to
practice law in the State of New York, hereby affirms pursuant to the
C.P.L.R. and subscribing as true under the penalties of perjury as
follows:

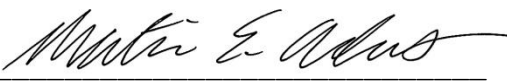
That the Affirmant is a member of the law firm Adams &
Commissiong LLP, the attorneys of record for the plaintiff Derrick
Watson in the above entitled action.

That the Affirmant has read the foregoing complaint and knows the
contents thereof; that the same is true to his knowledge, except as to
the matters stated to be alleged upon information and belief, and that
as to those matters he believes them to be true.

That the reason why this verification is made by Affirmant
instead of the plaintiff is because the plaintiff does not reside
within the County in which the firm of Adams & Commissiong LLP
maintain their office.

The grounds of Affirmant's belief as to all matters in the
complaint not stated to be upon his knowledge are based upon
conversations with plaintiff, and a review of records related to this
action.

DATED: New York, New York
July 17, 2017


MARTIN E. ADAMS, ESQ